Family Law Practice Direction 2026/3: Final hearing preparation in parenting and property proceedings

Commencement and application

This Practice Direction commences on 1 September 2026 and applies to every parenting proceeding, property proceeding and combined proceeding in the Court that is listed for final hearing on or after that date, whether the listing was made before or after commencement. It replaces the final hearing provisions of the earlier practice direction on trial management, which continues to apply to proceedings heard before 1 September 2026. The purpose of this Practice Direction is to ensure that the parties and the Court come to the final hearing knowing the issues in dispute, the evidence each party relies on and the orders each party seeks, so that the hearing time allocated is used for the matters that are genuinely in dispute. Where a party is unrepresented the Court may relieve that party of a requirement of this Practice Direction, and the represented party must assist the Court by providing the documents this Practice Direction requires in a form the unrepresented party can use.

Case outline

Each party must file and serve a case outline no later than 42 days before the first day of the final hearing. A case outline must not exceed 16 pages, in a font of at least 12 points, and must set out: the orders the party seeks at the final hearing, in the form of a minute; a summary of the facts the party will ask the Court to find and the evidence relied on for each; the issues the party says are in dispute; the legal principles relied on, with citations; and, in a property proceeding, the party's balance sheet and the contributions and adjustments the party contends for. A case outline that exceeds the page limit will not be accepted for filing without the leave of the trial judge. The applicant files first; the respondent and any independent children's lawyer file their outlines no later than 21 days before the first day of the final hearing, responding to the applicant's outline.

Relocation proposals and the tender bundle

In a parenting proceeding in which a party proposes to change the residence of a child to a place that would make the existing arrangements for the child's time with the other parent impracticable, the party proposing the change must file and serve a relocation proposal summary, not exceeding four pages, no later than 56 days before the first day of the final hearing, setting out the proposed residence, schooling, the proposed time and communication with the other parent, the travel arrangements and who will bear the cost of them, and the arrangements proposed if the change is not permitted. The parties must confer and exchange an agreed index to the tender bundle no later than 14 days before the first day of the final hearing, and the applicant must lodge the tender bundle in the form the Registry requires no later than seven days before the hearing. A party who does not comply with this Practice Direction may be ordered to pay the costs occasioned by the non-compliance.